

Parks, Recreation and Conservation (42)

Recreation And Conservation (42_8000) Patterson Trust (Merestead) (42_8000_5511)

Account Class	Account Rollup Name	Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
100 Annual Regular Salaries	1010 Net-Annual Regular	0	0	0	0	220,936	220,936
		0	0	0	0	220,936	220,936
101 Other Personal Services	1400 Overtime	0	0	0	0	10,000	10,000
		0	0	0	0	10,000	10,000
200 Equipment	2300 Replacement	0	0	0	0	2,058	2,058
		0	0	0	0	2,058	2,058
300 Material & Supplies	3200 Utilities	0	0	0	0	18,000	18,000
	3240 General Supplies	0	0	0	0	10,000	10,000
		0	0	0	0	28,000	28,000
400 Expenses	4070 Equip Service & Rental	0	0	0	0	1,000	1,000
	4200 Repair & Maintenance	0	0	0	0	3,000	3,000
	4280 Insurance	0	0	0	0	40,000	40,000
		0	0	0	0	44,000	44,000
599 Inter-Departmental Charge	5280 Svc by Public Works	0	0	0	0	2,000	1,740
		0	0	0	0	2,000	1,740
Total Expenditures		0	0	0	0	306,994	306,734
Net Expenditures		0	0	0	0	306,994	306,734
50 Departmental Income		0	0	0	0	5,000	5,000
Total Revenues		0	0	0	0	5,000	5,000
Net Department Total		0	0	0	0	301,994	301,734

Parks, Recreation and Conservation (42)

Account Title	Program Amount	Program Amount	<u>Current Year Program Amount: Funding Breakdown</u>			
	Prior Year	Current Year	Federal	State	Adv. to Grants	Other
Lasdon Estate Memorial Garden	\$125,000	\$125,000				\$125,000
Acct T-428 42-428A. Funds: Other \$125,000 from the William and Mildred Lasdon Foundation. Funding is provided for the upkeep of the newly formed Nanette's Garden as well as the Lasdon Memorial Garden. The Lasdon Memorial Garden is a one-acre garden located at the main entrance to the arboretum located in the William and Mildred Lasdon Park, Arboretum and Veterans Memorial. Term 01/01/25 - 12/31/25.						
	Prior Year	Current Year	Federal	State	Adv. to Grants	Other
Special Projects Trust Fund	\$100,000	\$100,000				\$100,000
Acct T-776 42-776A. Funds: Other \$100,000 from Corporations and Individuals. Various Parks Department sponsored programs including golf tournaments. Term: 01/01/25 - 12/31/25.						
	Prior Year	Current Year	Federal	State	Adv. to Grants	Other
Leisure Sports and Fitness Trust	\$180,000	\$180,000				\$180,000
Acct T-777 42-777A Funds: Other \$180,000 from Corporations and Individuals. The funds in this trust cover the expenses and corresponding revenues associated with offering various youth and adult athletic programs including basketball, volleyball, golf, softball and tennis. Also various summer day camps including basketball camp are supported fully from user fees. Term: 01/01/25 - 12/31/25.						
	Prior Year	Current Year	Federal	State	Adv. to Grants	Other
Performing Arts Trust Fund	\$100,000	\$100,000				\$100,000
Acct T-781 42-781A. Funds: Other \$100,000 from Corporations and Individuals. The funds in this trust cover the expenses and corresponding revenue associated with offering a music instruction program for youth each summer. Term: 01/01/25 - 12/31/25.						
	Prior Year	Current Year	Federal	State	Adv. to Grants	Other
Bicycle Sunday	\$40,000	\$40,000				\$40,000
Acct T-783 42-783A Funds: Other \$40,000 from Corporations 1nd Individuals. The Bicycle Trust is primarily comprised of corporate sponsorship to fund the Bike and Skate Program and Concert Sundays. Term: 01/01/25- 12/31/25						

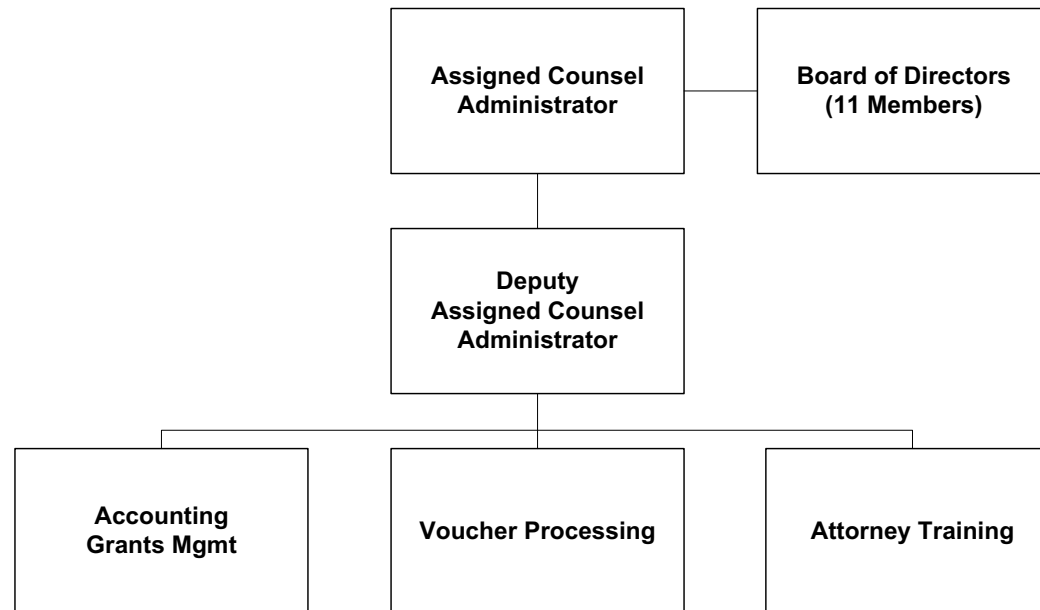
Parks, Recreation and Conservation (42)

Account Title	Program Amount	Program Amount	<u>Current Year Program Amount: Funding Breakdown</u>			
	Prior Year	Current Year	Federal	State	Adv. to Grants	Other
Camp Morty	\$683,930	\$843,930	\$194,104	\$329,133		\$320,693

Acct T-809 42-809A Funding: Other \$843,930 from Federal 23%, State 39% and Local 38%. Camp Morty will provide a positive summer sleep-away camp experience for Westchester's underprivileged children between the ages of 8 and 15 at Mountain Lakes Park. The children selected for Camp Morty will be recommended by Westchester County's Department of Social Services. The Department of Social Services will also provide funding to Camp Morty for each eligible child attending. Term: 01/01/25 - 12/31/25.

Westchester County

Office of Assigned Counsel (43)



The Assigned Counsel Administrator is appointed by the Board of Directors for the term of four years subject to the approval of the County Executive and confirmation of the Board of Legislators.

Office of Assigned Counsel (43)

Mission Statement

The Independent Office of Assigned Counsel is responsible for administering the Assigned Counsel Program in Westchester County which provides legal representation at no cost to indigent defendants in Criminal and Family Court proceedings. The Independent Office of Assigned Counsel has been established pursuant to New York State Law and the Standards for Establishing and Administering Assigned Counsel Programs promulgated by the New York State Office of Indigent Legal Services. The Office shall ensure that the Assigned Counsel Program in Westchester County has the proper structure and resources necessary for the provision of high quality and effective legal representation for indigent defendants in Criminal and Family Court matters.

	<u>2024</u>	<u>2025</u>
POSITIONS		
Operating	8	9
Grants		
	<u>8</u>	<u>9</u>
OPERATING BUDGET EXPENDITURES		
Personal Services	823,304	874,055
Equipment	46,134	51,944
Material & Supplies	13,411	19,000
Expenses	26,281,948	29,071,713
Interdepartmental Charges	211,848	200,866
TOTAL EXPENDITURES	<u>27,376,645</u>	<u>30,217,578</u>
OPERATING BUDGET REVENUES		
Interdepartmental		
Departmental		
State and Federal Aid	10,432,000	12,683,300
TOTAL REVENUES	<u>10,432,000</u>	<u>12,683,300</u>
DEPARTMENT TAX LEVY	<u>16,944,645</u>	<u>17,534,278</u>
* Estimated Share of Misc Budget Items:		
Retirement Systems	179,226	218,648
Health Insurance and Benefits	282,004	329,697
Debt Service		
DEPARTMENT TOTAL	<u>17,405,875</u>	<u>18,082,623</u>

The Appropriated 2024 figures in the supporting detail include all budget amendments through August 31, 2024 and Appropriations Assigned for Purchases on Order ("roll forwards") of \$.17,674

Office of Assigned Counsel (43)

The Office of Assigned Counsel administers the Westchester County Assigned Counsel Plan which is mandated by New York State.

The Office is required to operate under the following New York State and Federal Laws, Codes and Regulations:

Programs and Services

Assigned Counsel Plan

Counsel for Indigent Defendants

Independent Office of Assigned Counsel

State Law or Regulations

NYS County Law Article 18-B, §§722-722-F

NYS Executive Law §832

Local Law of Westchester County, Chapter 186

Office of Assigned Counsel (43)

PROGRAM AREA AND SERVICES:

GENERAL GOVERNMENT SUPPORT

- ✓ Established pursuant to New York State Law and the Standards for Establishing and Administering Assigned Counsel Programs promulgated by the New York State Office of Indigent Legal Services.
- ✓ Established pursuant to Westchester Local Law Chapter 186 in 2021.
- ✓ Oversight provided by Board of Directors appointed pursuant to Westchester Local Law Chapter 186.
- ✓ Responsible for administering the Assigned Counsel Program in Westchester County which provides legal representation at no cost to low income litigants in Criminal and Family Court matters as well as in Violations of Parole matters and Criminal and Family Court appeals.

DEPARTMENT INITIATIVES:

ON-GOING

- ✓ Ensure that the program has the proper structure and resources necessary for the provision of high quality and effective legal representation for litigants in Criminal and Family Court matters as well as in Violations of Parole matters and Criminal and Family Court appeals.
- ✓ Ensure that all clients are provided with quality legal representation as soon as feasible, including before the filing of a petition or accusatory instrument.
- ✓ Develop and monitor program policies, standards and operational procedures of the Assigned Counsel Program regarding qualifications for appointment to and retention on the panel, recruitment of attorneys to serve on the panel, limitations on attorney caseloads, guidelines for the administrative responsibilities of panel attorneys and supervision and review of attorney caseloads and quality of legal representation.
- ✓ Maintain a panel of attorneys eligible to receive assignments for indigent representation based upon sufficient knowledge and experience.

- ✓ Establish qualifications and standards for certification of attorneys to become members of the panel, pursuant to a certification program managed by the Westchester County Bar Association.
- ✓ Establish procedures and standards for a recertification program managed by the Westchester County Bar Association whereby every three (3) years attorneys must reapply to remain on the panel
- ✓ Ensure adequate attorney participation on the panel and that training for assigned counsel is provided.
- ✓ Oversee the coordination of panel attorneys, facilitate a fair and prompt process for assignments, ensure that the ability, training and experience of panel attorneys are matched to the complexity of the cases to which they are assigned and provide for timely assignments of counsel to eligible clients as soon as feasible, including before the filing of a petition or accusatory instrument in some cases and after arrest, detention or request for counsel in a criminal case, at the earliest possible stage of a state intervention case in Violations of Parole, and Family Court and appellate matters.
- ✓ Review all vouchers for services provided through the Assigned Counsel program including attorney vouchers to ensure proper payment for services performed.
- ✓ Establish procedures for submission, investigation and resolution of complaints from clients, client family members, co-counsel, opposing counsel and the Judiciary regarding legal representation.
- ✓ Approve requests by panel attorneys of use of funding issued by the New York State Office of Indigent Legal Services for any non-attorney professional services such as investigative, expert witness, social work, interpreter, mental health, supervised visitation or any other professional service, as required to provide quality representation.

DEPARTMENT ACCOMPLISHMENTS:

ON-GOING

- ✓ Developed and implemented procedures for the efficient review and processing of a high volume of data
- ✓ Continued to streamline processes for attorney payment via a digital payment platform

Office of Assigned Counsel (43)

- ✓ Facilitated improved access to counsel for non-English speaking and incarcerated clients
- ✓ Provided equal access to online legal research for all panel attorneys in furtherance of high quality legal representation for assigned Clients
- ✓ Continued partnership with the Osborne Association to work with assigned clients and their attorneys to yield more favorable outcomes
- ✓ Continued the implementation of the Second Upstate Family Defense Grant to afford parents wall-to-wall legal counsel
- ✓ Streamlined process for obtaining experts for consultation on assigned cases to ensure equity of access to key resources on behalf of as-signed clients
- ✓ Developed a wellness culture for staff in furtherance of high productivity and fidelity to our mission
- ✓ Streamlined processes to ensure prompt claiming for reimbursable State grant funds
- ✓ Ensured representation at critical first stage in legal proceedings pursuant to the establishment of a City Court weekend/holiday Centralized Arraignment part
- ✓ Engaged in data collection to analyze performance and expenditures
- ✓ Emphasis on recruitment and retention of highly qualified attorneys
- ✓ Cross trainings of attorneys in furtherance of holistic advocacy
- ✓ Weekly seminars and regular trainings for attorneys and non-attorney experts, in furtherance of skill building and knowledge to ensure high quality and client centered legal representation
- ✓ Established a mentorship program and a second-seat program for Criminal Court and Family Court practitioners, via State grant funds
- ✓ Established an internship program for public interest oriented law students
- ✓ Created Digital Information Repository to facilitate immediate access to information and documents to further the expeditious and effective representation
- ✓
- ✓ Fostered a community-of-colleagues culture amongst the attorneys by holding town hall meetings, publishing a quarterly newsletter, creating a panel ListServ, hosting an in-office lending library for attorneys and their clients, and held the first annual in-person panel-wide conference
- ✓ Collaborated with District Attorney's Conviction Integrity Unit and Pro-Bono law firms to remedy wrongful convictions
- ✓ Obtained digital storage devices for the use of attorneys in furtherance of discovery reform, via State grant funds
- ✓ Provided statute books and legal treatises to all attorneys via State grant funds
- ✓ Completed in-office available to all panel attorneys and non-attorney experts for conferences and meetings

REVENUES:

- ✓ Revenues are received from New York State Office of Indigent Legal Services.

Office of Assigned Counsel (43)

Objects of Expenditure		Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
Personal Service:							
Annual-Regular:							
	GROUP						
Executive Director	XIX	1	1	1	1	1	1
Deputy Director	XVII	1	1	1	1	1	1
Director of Training	XIV		1	1	1	1	1
Acct II	X	1	1	1	1	2	2
Jr. Admin	VIII		1	1	1	1	1
Acct Ctrl Specialist	VIII	1	1	1	1	1	1
Acct Clrk	VI	2	2	2	2	2	2
Total Positions		6	8	8	8	9	9